

MAY 1 1998



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10886
(FIFTH REVISION)

EXPIRATION DATE: April 30, 2000

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Eco-Pak, Incorporated
Elizabethton, Tennessee

2. PURPOSE AND LIMITATIONS:

This exemption authorizes the manufacture, marking and sale of a specially designed UN1A1W packaging for the shipment of materials poisonous by inhalation and hazardous materials authorized to be shipped in a UN1A1 drum. This exemption provides no relief from any regulation other than as specifically stated herein.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.201, 173.202, 173.203, 173.226 , and 173.227.
5. BASIS: This exemption is based on the application of Eco-Pak, Incorporated dated March 31, 1998, submitted in accordance with 49 CFR 107.109.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Those liquid materials which are authorized to be transported in a UN1A1 drum or in a UN1A1 drum overpacked in a UN1A2 drum	Class 3, 8, 9 Division 4.1, 4.2, 4.3, 5.1, 5.2, 6.1	As approp- riate	As approp- riate

Specific chemical name or generic description, as appropriate.

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a double containment packaging described as a UN1A1W comprised of an inner packaging constructed of stainless steel or an equivalent material, surrounded by insulation and enclosed in an outer steel packaging. Both the inner and outer packagings must comply with the minimum thicknesses prescribed in 49 CFR 173.226(b). The integral packaging is mounted within a metal frame on a steel pallet.

b. Both the inner and outer packagings must comply with the performance test requirements of 49 CFR Part 178, Subpart M, as applicable to steel drums, at the Packing Group I level. The hydrostatic test pressure for the inner packaging must be 550 kPa (80 psig), and the hydrostatic test pressure for the outer packaging must be 100 kPa (15 psig).

c. Closures must conform to 49 CFR 173.226(b) (3).

8. SPECIAL PROVISIONS:

a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

- b. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.
- c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
- d. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- e. MARKING - The packaging must be marked in accordance with 49 CFR 178.3 and 178.503, with "1A1W" marked as the packaging identification code required by 49 CFR 178.503(a).
- f. In addition, the outside of each packaging must be plainly and durable marked "DOT-E 10886".
- g. This exemption serves as a Competent Authority Approval (CA-9801003) by the Associate Administrator for Hazardous Materials Safety of the United States Department of Transportation issued in accordance with paragraph 10.3 of the General Introduction to the International Maritime Dangerous Goods (IMDG) Code and Part 3, Chapter 2, Paragraph 2.5 of the International Civil Aviation Organization's Technical Instructions.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft, cargo aircraft only.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.

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- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.

for *Alan I. Roberts*
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

5/1/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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